

LOKPAL AND LOKAYUKTAS

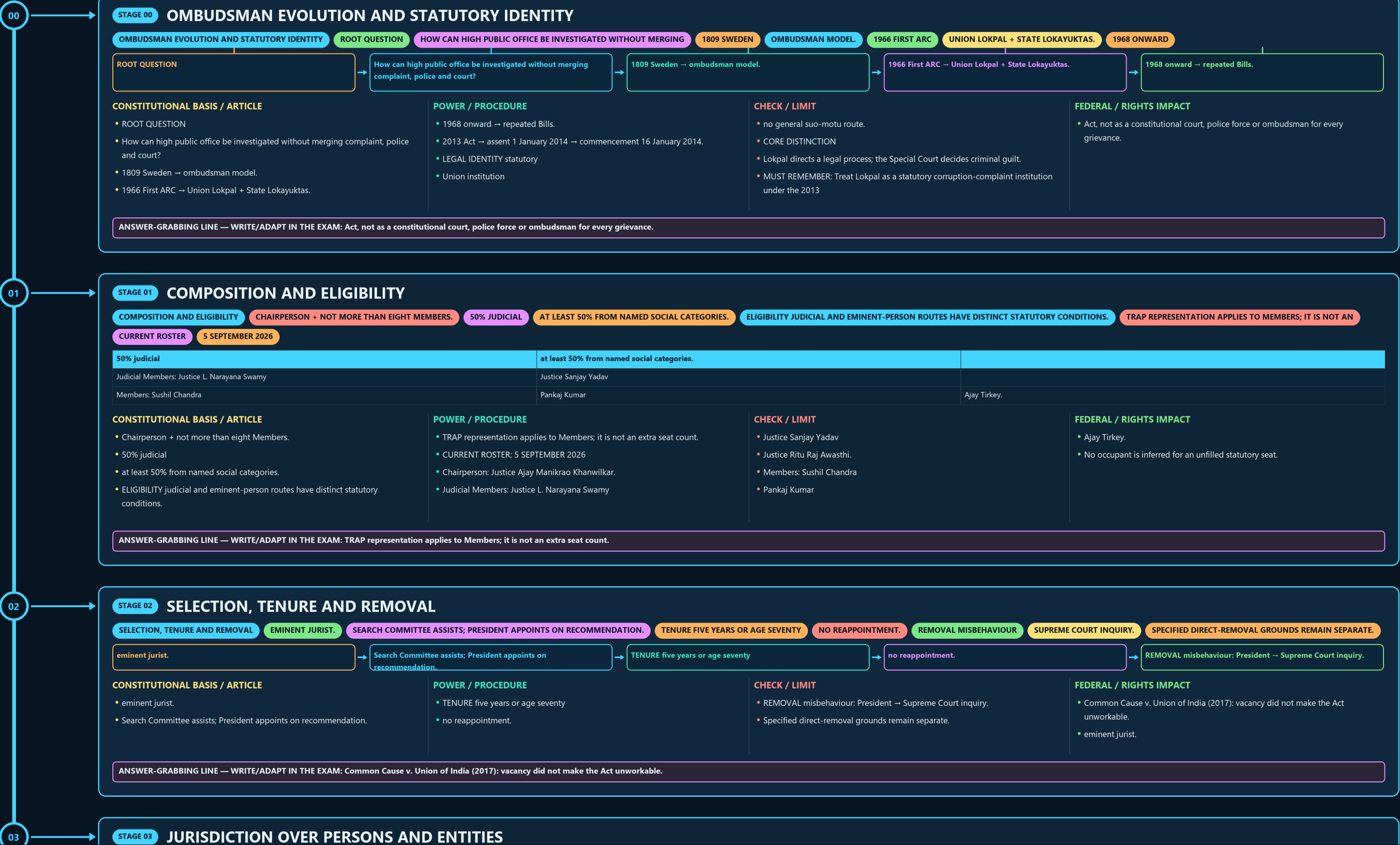
OMBUDSMAN EVOLUTION AND STATUTORY → COMPOSITION AND ELIGIBILITY → SELECTION, TENURE AND REMOVAL → JURISDICTION OVER PERSONS AND → PRIME MINISTER AND PARLIAMENTARY → COMPLAINT AND PRELIMINARY INQUIRY

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Approval: FALSE • Pending user review • source generation g5 and all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles



ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Common Cause v. Union of India (2017): vacancy did not make the Act unworkable.

03

STAGE 03

JURISDICTION OVER PERSONS AND ENTITIES

JURISDICTION OVER PERSONS AND ENTITIESGROUPS A-DFORMER COVERED FUNCTIONARIES.ENTITIES GOVERNMENT-LINKED BODIES AND SPECIFIED DONATION/FOREIGN-CONTRIBUTION RECIPIENTS, SUBJECT TOTRAP COVERAGE IS CONDITIONAL; LOKPAL HAS NO GENERAL PRIVATE-SECTOR

CONSTITUTIONAL BASIS / ARTICLE

- Groups A-D
- former covered functionaries.

POWER / PROCEDURE

- ENTITIES government-linked bodies and specified donation/foreign-contribution recipients, subject to statutory thresholds.
- TRAP coverage is conditional; Lokpal has no general private-sector jurisdiction.

CHECK / LIMIT

- Groups A-D
- former covered functionaries.

FEDERAL / RIGHTS IMPACT

- ENTITIES government-linked bodies and specified donation/foreign-contribution recipients, subject to statutory thresholds.
- TRAP coverage is conditional; Lokpal has no general private-sector jurisdiction.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAP coverage is conditional; Lokpal has no general private-sector jurisdiction.

04

STAGE 04

PRIME MINISTER AND PARLIAMENTARY PRIVILEGE

PRIME MINISTER AND PARLIAMENTARY PRIVILEGEPM FILTER EXCLUDED DOMAINSINTERNATIONAL RELATIONSPUBLIC ORDERATOMIC ENERGYFULL BENCH + TWO-THIRDS APPROVALIN CAMERARECORD CONTROLS.

CONSTITUTIONAL BASIS / ARTICLE

- PM FILTER excluded domains: international relations
- public order

POWER / PROCEDURE

- atomic energy
- Full bench + two-thirds approval

CHECK / LIMIT

- in camera
- record controls.

FEDERAL / RIGHTS IMPACT

- MP RULE section 14(2) preserves genuine speech/vote functions.
- Sita Soren (2024): bribery is not immunised merely because linked to a vote.

MECHANISM / VERDICT — Sita Soren (2024): bribery is not immunised merely because linked to a vote.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: MP RULE section 14(2) preserves genuine speech/vote functions.

05

STAGE 05

COMPLAINT AND PRELIMINARY INQUIRY

COMPLAINT AND PRELIMINARY INQUIRYPRESCRIBED COMPLAINT IDENTITY + AFFIDAVIT + PARTICULARS + SUPPORTINGLOKPAL CHOICE PRELIMINARY INQUIRYLAWFUL CLOSURE.INQUIRY PRIMA FACIE SCREENPUBLIC-SERVANT HEARINGREASONED REPORT.

INQUIRY IS NOT INVESTIGATION AND ALLEGATION IS NOT GUILT.

PRESCRIBED COMPLAINT identity + affidavit + particulars + supporting material → scrutiny.

LOKPAL CHOICE preliminary inquiry

lawful closure.

INQUIRY prima facie screen → public-servant hearing → reasoned report.

Inquiry is not investigation and allegation is not guilt.

CONSTITUTIONAL BASIS / ARTICLE

- PRESCRIBED COMPLAINT identity + affidavit + particulars + supporting material → scrutiny.
- LOKPAL CHOICE preliminary inquiry

POWER / PROCEDURE

- lawful closure.
- INQUIRY prima facie screen → public-servant hearing → reasoned report.

CHECK / LIMIT

- Inquiry is not investigation and allegation is not guilt.
- CLOSE DISTINCTION: Prime-Minister safeguards, parliamentary privilege, the seven-year bar, agency dependence and State-law Lokayukta variation must remain explicit.

FEDERAL / RIGHTS IMPACT

- PRESCRIBED COMPLAINT identity + affidavit + particulars + supporting material → scrutiny.
- LOKPAL CHOICE preliminary inquiry

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: CLOSE DISTINCTION: Prime-Minister safeguards, parliamentary privilege, the seven-year bar, agency dependence and State-law Lokayukta variation must remain explicit.

06

STAGE 06

INVESTIGATION, PROSECUTION AND SPECIAL COURT

INVESTIGATION, PROSECUTION AND SPECIAL COURTCBI/OTHER AGENCY GATHERS EVIDENCE WITHIN STATUTORY TIMELINES.LOKPAL BENCH CLOSUREDEPARTMENTAL ACTIONSANCTION/PROSECUTION ROUTEPROSECUTION WING FILES AND CONDUCTS PROSECUTION WHEN DIRECTED.

SPECIAL COURT ADJUDICATES GUILT; TARGET ONE YEAR WITH RECORDED

LOKPAL BENCH closure

departmental action

sanction/prosecution route.

CONSTITUTIONAL BASIS / ARTICLE

- CBI/other agency gathers evidence within statutory timelines.
- LOKPAL BENCH closure

POWER / PROCEDURE

- departmental action
- sanction/prosecution route.

CHECK / LIMIT

- PROSECUTION WING files and conducts prosecution when directed.
- SPECIAL COURT adjudicates guilt; target one year with recorded extensions, total two years.

FEDERAL / RIGHTS IMPACT

- CBI/other agency gathers evidence within statutory timelines.
- LOKPAL BENCH closure

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: SPECIAL COURT adjudicates guilt; target one year with recorded extensions, total two years.

LOKPAL AND LOKAYUKTAS • TILE 2/4 • same master rows 2899-6133 of 11930 • continues below

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
- CBI/other agency gathers evidence within statutory timelines. - LOKPAL BENCH closure	- departmental action - sanction/prosecution route.	- PROSECUTION WING files and conducts prosecution when directed. - SPECIAL COURT adjudicates guilt; target one year with recorded extensions, total two years.	- CBI/other agency gathers evidence within statutory timelines. - LOKPAL BENCH closure
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: SPECIAL COURT adjudicates guilt; target one year with recorded extensions, total two years.			

STAGE 07 INQUIRY WING, CVC AND CBI INTERFACES			
INQUIRY WING, CVC AND CBI INTERFACES	INQUIRY WING PRELIMINARY INQUIRY AND PRIMA FACIE ASSESSMENT.	PROSECUTION WING FILES AND CONDUCTS PROSECUTION WHEN LOKPAL DIRECTS.	CVC ROUTE SPECIFIED GROUPS A-D PRELIMINARY-INQUIRY CATEGORIES UNDER THE
DSPE ROUTE CRIMINAL INVESTIGATION; LOKPAL SUPERINTENDENCE IS CONFINED TO	INVESTIGATING-OFFICER TRANSFER IN A REFERRED MATTER NEEDS LOKPAL APPROVAL.	GRIEVANCE DISTINCT ENTRY TESTS AND OUTPUTS; NO AUTOMATIC JURISDICTIONAL	LIMIT SUPERINTENDENCE
CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
INQUIRY WING preliminary inquiry and prima facie assessment.	CVC ROUTE specified Groups A-D preliminary-inquiry categories under the statutory distribution.	Investigating-officer transfer in a referred matter needs Lokpal approval.	LIMIT superintendence != power to dictate a predetermined investigative result.
PROSECUTION WING files and conducts prosecution when Lokpal directs.	CBI / DSPE ROUTE criminal investigation; Lokpal superintendence is confined to Lokpal-referred matters.	VIGILANCE / WHISTLEBLOWER / GRIEVANCE distinct entry tests and outputs; no automatic jurisdictional substitution.	INQUIRY WING preliminary inquiry and prima facie assessment.
CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
- INQUIRY WING preliminary inquiry and prima facie assessment. - PROSECUTION WING files and conducts prosecution when Lokpal directs.	- CVC ROUTE specified Groups A-D preliminary-inquiry categories under the statutory distribution. - CBI / DSPE ROUTE criminal investigation; Lokpal superintendence is confined to Lokpal-referred matters.	- Investigating-officer transfer in a referred matter needs Lokpal approval. - VIGILANCE / WHISTLEBLOWER / GRIEVANCE distinct entry tests and outputs; no automatic jurisdictional substitution.	- LIMIT superintendence != power to dictate a predetermined investigative result. - INQUIRY WING preliminary inquiry and prima facie assessment.
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LIMIT superintendence != power to dictate a predetermined investigative result.			

STAGE 08 POWERS, ASSETS AND LIMITATION			
POWERS, ASSETS AND LIMITATION	PROCESS POWERS SEARCH/SEIZURE	CIVIL-COURT POWERS	PROVISIONAL ATTACHMENT
PROSECUTION SANCTION.	ATTACHMENT RECORDED REASONS + SUSPECTED CORRUPTION PROCEEDS + MAXIMUM	MATERIAL SENT TO SPECIAL COURT	
CONFIRMATION, REFUSAL OR LATER RESTORATION.			
CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
- PROCESS POWERS search/seizure - civil-court powers - provisional attachment	- prosecution sanction. - ATTACHMENT recorded reasons + suspected corruption proceeds + maximum ninety-day provisional order - material sent to Special Court → confirmation, refusal or later restoration.	- SECTION 44 2016 substitution → assets/liabilities in prescribed form and manner. - Checked official material did not yield a later fresh replacement form-and-manner rule.	- LIMITATION complaint barred after seven years from the alleged offence. - FALSE COMPLAINT statutory safeguard requires legal proof; it must not deter bona fide disclosures. - Lok Prahari v. Union of India (2018) electoral disclosure case; it did not restore the pre-2016 Lokpal return format.
MECHANISM / VERDICT — LIMITATION complaint barred after seven years from the alleged offence.			
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Checked official material did not yield a later fresh replacement form-and-manner rule.			

STAGE 09 LOKAYUKTAS AND FEDERAL DIVERSITY			
LOKAYUKTAS AND FEDERAL DIVERSITY	SECTION 63 EACH STATE SHALL ESTABLISH A LOKAYUKTA BY	VARIATION AXES SINGLE/MEMBER BODY	SELECTION PANEL
DO NOT UNIVERSALISE ONE STATE'S GOVERNOR PANEL, AGE, TERM	SUO-MOTU POWER MINISTER COVERAGE	INVESTIGATION SUPPORT	RECOMMENDATION/ENFORCEMENT ROUTE.
CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
SECTION 63 each State shall establish a Lokayukta by State law.	suo-motu power minister coverage	DO NOT UNIVERSALISE one State's Governor panel, age, term, Upalokayukta or report consequence.	FEDERAL RISK uneven minimum protection, vacancies and dependence on State agencies.
VARIATION AXES single/member body	investigation support	FEDERAL GAIN	REFORM model baseline + State autonomy + transparent appointments + public follow-up.
selection panel	recommendation/enforcement route.	State adaptation and experimentation.	
CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
- SECTION 63 each State shall establish a Lokayukta by State law. - VARIATION AXES single/member body - selection panel	- suo-motu power minister coverage - investigation support - recommendation/enforcement route.	- DO NOT UNIVERSALISE one State's Governor panel, age, term, Upalokayukta or report consequence. - FEDERAL GAIN - State adaptation and experimentation.	- FEDERAL RISK uneven minimum protection, vacancies and dependence on State agencies. - REFORM model baseline + State autonomy + transparent appointments + public follow-up.

CONSTITUTIONAL BASIS / ARTICLE - SECTION 63 each State shall establish a Lokayukta by State law. - VARIATION AXES single/member body - selection panel	POWER / PROCEDURE - suo-motu power minister coverage - investigation support - recommendation/enforcement route.	CHECK / LIMIT - DO NOT UNIVERSALISE one State's Governor panel, age, term, Upalokayukta or report consequence. - FEDERAL GAIN - State adaptation and experimentation.	FEDERAL / RIGHTS IMPACT - FEDERAL RISK uneven minimum protection, vacancies and dependence on State agencies. - REFORM model baseline + State autonomy + transparent appointments + public follow-up.
MECHANISM / VERDICT — DO NOT UNIVERSALISE one State's Governor panel, age, term, Upalokayukta or report consequence.			
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: REFORM model baseline + State autonomy + transparent appointments + public follow-up.			

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STAGE 10

CASES AND CURRENT LEGAL CONTROLS

CASES AND CURRENT LEGAL CONTROLS

COMMON CAUSE V. UNION OF INDIA (2017)

ACT WORKABLE DESPITE COMMITTEE VACANCY.

LOK PRAHARI V. UNION OF INDIA (2018)

ELECTORAL DISCLOSURE, NOT SECTION 44 RESTORATION.

SITA SOREN (2024)

BRIBERY OUTSIDE PRIVILEGE IMMUNITY.

2025 HIGH COURT-JUDGE ISSUE

Common Cause v. Union of India (2017) → Act workable despite committee vacancy.

Lok Prahari v. Union of India (2018) → electoral disclosure, not section 44 restoration.

Sita Soren (2024) → bribery outside privilege immunity.

2025 HIGH COURT-JUDGE ISSUE

Supreme Court stayed the Lokpal order; no final merits holding.

CONSTITUTIONAL BASIS / ARTICLE

• Common Cause v. Union of India (2017) → Act workable despite committee vacancy.

• Lok Prahari v. Union of India (2018) → electoral disclosure, not section 44 restoration.

• Sita Soren (2024) → bribery outside privilege immunity.

POWER / PROCEDURE

• 2025 HIGH COURT-JUDGE ISSUE

• Supreme Court stayed the Lokpal order; no final merits holding.

• CURRENT CLAIMS use dated primary sources; do not freeze transient statistics.

CHECK / LIMIT

• PENDING-JURISDICTION CONTROL

• The Supreme Court's 20 February 2025 interim order stayed the Lokpal's

• High Court-judge jurisdiction order. Do not convert the stay into a final merits rule.

FEDERAL / RIGHTS IMPACT

• 2025 HIGH COURT-JUDGE ISSUE

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: High Court-judge jurisdiction order. Do not convert the stay into a final merits rule.

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STAGE 11

UPSC TRAPS AND ANSWER SYNTHESIS

UPSC TRAPS AND ANSWER SYNTHESIS

PRELIMS FIREWALL STATUTORY, NOT CONSTITUTIONAL

MAXIMUM EIGHT MEMBERS

PM INCLUDED WITH FILTERS SPEECH/VOTE EXCLUSION

NO GENERAL SUO-MOTU POWER

SEVEN-YEAR LIMITATION REFERRED-CASE CBI SUPERINTENDENCE ONLY

LOKAYUKTA DESIGN VARIES.

2025 PRELIMS ROUTE JURISDICTION + COMPOSITION

PRELIMS FIREWALL statutory, not constitutional

→

maximum eight Members

→

PM included with filters speech/vote exclusion

→

no general suo-motu power

→

seven-year limitation referred-case CBI superintendence only

CONSTITUTIONAL BASIS / ARTICLE

- PRELIMS FIREWALL statutory, not constitutional
- maximum eight Members
- PM included with filters speech/vote exclusion
- no general suo-motu power

POWER / PROCEDURE

- seven-year limitation referred-case CBI superintendence only
- Lokayukta design varies.
- 2025 PRELIMS ROUTE jurisdiction + composition → test percentage denominator, PM safeguards and privilege.
- MAINS SPINE ombudsman evolution → legal identity → composition/independence

CHECK / LIMIT

- jurisdiction → complaint-to-court process → agency interfaces
- powers and safeguards → State variation → capacity reform.
- Lokpal has real process powers, but credibility depends on appointments, agency
- autonomy, reasoned transparency and court-controlled legality rather than institutional mythology.

FEDERAL / RIGHTS IMPACT

- LEGAL/SOURCE LIMIT: Justice A.
- Khanwilkar and the six officially listed Members form the dated central roster
- the 2025 High Court-judge jurisdiction order remains stayed.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: PRELIMS FIREWALL statutory, not constitutional | maximum eight Members | PM included with filters speech/vote exclusion | no general suo-motu power | seven-year limitation referred-case CBI superintendence only | Lokayukta design varies.

E

EXTRA

SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT

DRAWBACKS (UPSC FAVOURITE)

UPSC TRAPS

CA HOOKS (OFFICIAL/COURT-VERIFIED)

MAINS ANGLES

OMBUDSMAN FIRST CREATED IN SWEDEN (1809) ; INDIA'S VERSION

ARC KEPT THE JUDICIARY OUTSIDE LOKPAL'S PURVIEW (LIKE NEW

TEN BILLS INTRODUCED (1968

OPTIONAL DOCTRINE / CASE

• Composition

• Selection

• Jurisdiction

• Drawbacks (UPSC favourite)

ADVANCED LIMIT

• UPSC Traps

• CA hooks (official/court-verified)

• Mains angles

• Ombudsman first created in Sweden (1809) ; India's version recommended by the First ARC (1966–70) →

COMPARATIVE NUANCE

• ARC kept the judiciary outside Lokpal's purview (like New Zealand; unlike Sweden).

• Ten bills introduced (1968 → Dec 2011) before the law finally passed → Lokpal and Lokayuktas Act, 2013

• Power of superintendence & direction over any agency incl. the CBI for referred cases.

• Timelines: preliminary enquiry 3 (+3) months; investigation 6 (+6); trial 1 (+1) yr via special courts .

OPTIONAL STATUS —

This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.